

property.

Plaintiff's request for relief for the costs that Chloe should have received have no legal support.

Conclusion

Any mention of punitive or exemplary damages, or the special value of Chloe, shall be stricken. Plaintiff will not be granted leave to amend to seek such relief. The court finds no reasonable likelihood that these defects can be cured.

However, while Plaintiff apparently exceeded the scope of the court's 2/3 Ruling in adding the defendants VCA et al., MARS, and DOES, the court will grant her to leave to amend the complaint to add these defendants.

Disposition

Defendant's Motion is granted in part, and denied in part. The particulars are noted in the Conclusion section, above.

Plaintiff is given leave to amend her SAC to add new defendants, but she is not permitted leave to amend the relief she sought in the SAC with respect to punitive or exemplary damages, or any relief related to the special or sentimental value of Chloe, as detailed in the Conclusion section, above.

Defense to file Order.

Plaintiff will have 10 days from the date of this Order to amend.

12. 9:00 AM CASE NUMBER: L25-07941
CASE NAME: WELLS FARGO BANK, NA VS. MARSHA JOY

***HEARING ON MOTION IN RE: MSJ**

FILED BY:

TENTATIVE RULING:

This matter is not on calendar.

13. 9:00 AM CASE NUMBER: L25-08756
CASE NAME: SECURITYPLUS FEDERAL CREDIT UNION VS. LAUREN PORTER

***HEARING ON MOTION IN RE: TO TRANSFER VENUE AND JURISDICTION**

FILED BY:

TENTATIVE RULING:

This matter was continued from 2/3/26, when the court found that Plaintiff had not been properly served with notice of Plaintiff's Motion to Transfer Venue.

In the ruling from 2/3/26, Defendant was ordered to timely serve Plaintiff with notice of 4/14/26 as

the new date for the Motion.

Defendant has not filed a proof of service indicating that this notification has occurred.

Disposition

This Motion will be dropped. It will not be continued.

14. 9:00 AM CASE NUMBER: L25-12293
CASE NAME: WELLS FARGO BANK, N.A. VS. ENA ATTIOGBE
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: ATTIOGBE, ENA
TENTATIVE RULING:

Defendant has filed a Demurrer to the Complaint. Notice was provided and Plaintiff filed a response.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.

A defendant may raise the issue of standing in a Demurrer when the complaint does not state facts sufficient to constitute a cause of action by the particular plaintiff. *CCP 430.10(b) and (e); CCP 430.30(a); and Mercury Interactive Corp. v. Klein* (2007) 158 CA4th 60, 103-104.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821. The formation of a contract requires that the contract terms were clear enough that the parties could understand what each was required to do.